

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 13, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn (arriving at 6:05 p.m.), Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. White moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on September 13, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located north of and adjacent to Miller Lane, between Sunset Drive and Townsend Place. Tammy Plunkett, adjacent property owner, reiterated comments and concerns voiced at the previous city council meeting related to the proposed zone change involving possible drainage and sewer issues, increased traffic, proposed type of development and the planned number of additional townhome residential units. Ms. Plunkett expressed concerns with the proposed removal of Dean Court, which is the only access road that goes along Miller Lane, relating to emergency medical services (EMS) and police access to the area. She noted she believes there is an error in the city’s staff report relating to blocks mentioned in the development and requested consideration to keep the current zoning. Ms. Plunkett advised she has attended several meetings related to the proposed zone change and has talked to neighbors in the area. Upon request by Mayor Collins for examples of mistakes made related to the proposed zone change as referenced by Ms. Plunkett, she noted the discrepancy in lots in the original staff report (which has been corrected) and that she doesn’t believe her concerns have been addressed as the proposed project will affect her and her property. Ms. Plunkett requested consideration of tabling the matter. Brad Emmons, AVI, and agent for the applicant, provided information on the cottage lot development type noting it has been in the community for some time. Upon inquiry, Mr. Emmons explained the lot numeration error has been corrected in the staff report and many of the voiced concerns such as traffic, sewer, drainage, and emergency services access have been discussed. Mr. Emmons further advised the project’s sewer and water are being reviewed by the

Board of Public Utilities (BOPU) and the sewer line up Dean Court will be abandoned as it doesn't function and was previously a private line, therefore a new sewer line and water main will be installed. Mr. Emmons noted the proposed project will include 18 1 bedroom 1 bath units and a traffic study has been turned in as required by the city. Upon further inquiry, Mr. Emmons explained the proposed amendment to the cottage lot development ordinance will affect the development and provided information on the ordinance amendment noting there are many requirements for this development type. If the amendments to the cottage lot development ordinance aren't approved, they would likely need a new concept under NR-2 zoning classification for the proposed project. It was explained that during the final plat stage of the project, engineering drawings and additional exterior elevation requirements are submitted. Tom Cobb, City Engineer, advised they have received a preliminary report for drainage for the infill development and final determination on drainage will be made during the next development step. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Comment was made that under the current zone classification of MR, the proposed 18 units can be built but changing the zoning classification to NR-2 will allow the cottage lot development type which will include shared common outdoor space where Dean Court is currently located. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#4394)

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to clarify and better facilitate cottage lot development. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Comments were made related to the current requirements of the cottage lot development being hard to meet and constituents concerns with patio type homes that use this type of lot. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE –1st READING – Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2021-2022 – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending Section 2.76.020(B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural to MR Medium-Density Residential, HR High-Density Residential, MUB Mixed-Use Business Emphasis, and CB Community Business for land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for the 'Golf, it's the Least of our Problems' Golf Tournament to be held on September 25, 2021. Jeff White recused himself from discussion and voting due to a family member's employment affiliation with the Cheyenne Depot Museum and vacated council chambers. Bryan Grzegorzcyk provided information about the event noting it is a putt putt style

golf tournament throughout several downtown businesses that is a fundraiser for the Cheyenne Depot Museum and also brings business downtown. Mr. Grzegorzczuk stated 320 people participated in the event last year and over \$18,000 was raised. Upon inquiry, Kaylan Eicholtz, Cheyenne Depot Museum, noted there weren't any open container issues or concerns with the event last year (or generally relating to open containers in the downtown area) and the request for permitting open containers is mainly so the tournament participants can carry their drinks throughout the tournament. Cheyenne Police Department Chief Mark Francisco explained upon inquiry that there were no major problems with the open container allowance this year and the department can utilize the option of public intoxication citations when necessary. Additional comments were made related to the function of last year's tournament and how some teams didn't get to finish the game. Mr. Grzegorzczuk noted the event will be scaled down and only 2 teams will be at each hole. Dr. Rinne moved to adopt, seconded by Mr. Segrave. It was noted the request for permitting open containers for the event is due to the event being scheduled outside of the Memorial Day to Labor Day open container timeframe that is allowed in the downtown district boundaries. Motion carried. Voting "yes" – all members of the governing body. (#6171)

[CA] RESOLUTION – Authorizing submission of the Nita M. Lowey 21st Century Community Learning Centers grant application to the Wyoming Department of Education on behalf of the Governing Body of the City of Cheyenne for continuation of grant funding in year four for afterschool programing and necessary support items (Nita M. Lowey 21st Century Grant Funding). Motion (per Consent Agenda) carried. (#6172)

[CA] RESOLUTION – Instructing the City Clerk to defer acceptance of applications for the one (1) additional Retail Liquor License, as authorized to the City pursuant to provisions of Wyo. Stat. § 12-4-101, until a time frame in which to submit applications has been determined by the Governing Body of the City of Cheyenne. Motion (per Consent Agenda) carried. (#6173)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2022 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – To honor William R. 'Bill' Dubois and his contributions to the arts and humanities in Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Miller Addition, 5th Filing, a replat of Lots 7-18, Block 3 and Dean Court, Miller Addition, Cheyenne, Laramie County, Wyoming (located north of Miller Lane, between Sunset Drive and Townsend Place) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Granting an exception to the '201 Agreement' for the owner of the property located at 5057 Loving Trail to allow installation of an on-site septic system located within the city – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Professional Services Agreement between the City of Cheyenne and Econolite Systems, Inc., Anaheim, CA, for the 2021 Advanced Traffic Management System (ATMS) Software Project (2015-2018 and 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$154,626.00). (#7401)

[CA] Contract between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, Sheridan, WY, to provide alcohol and drug detoxification services to individuals (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$115,000.00). (#7402)

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$17,500.00). (#7403)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$50,000.00). (#7404)

[CA] Contingency and Development Agreement between the City of Cheyenne and Project Bison to perform duties as outlined in the Wyoming Business Council Business Ready Community Grant Program for a Managed Data Center Cost Reduction Grant to recoup accrued utility expenses (WBC Managed Data Center Grant). Motion (per Consent Agenda) carried. (#7405)

[CA] Memorandum of Agreement between Robin and Debbie Courtier, the City of Cheyenne, and the Wyoming Department of Transportation for the study of downstream storm water problems. Motion (per Consent Agenda) carried. (#7406)

[CA] Contract between the City of Cheyenne, Police Department, and the Wyoming Department of Transportation for Occupant Protection High Visibility Overtime-Traffic Enforcement (Highway Safety and Occupant Protection Hi-Vis Enforcement Grants) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and the Wyoming Department of Transportation for Impaired Driving High Visibility Overtime-Traffic Enforcement (Highway Safety and Impaired Driving Hi-Vis Enforcement Grants) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Tourism Promotion Joint Powers Board, d/b/a Visit Cheyenne, regarding the partnership to develop planning and design for a first phase of the Cheyenne Railroad Visitor Experience – referred to Finance Committee.

[CA] Rental Agreement between the City of Cheyenne, Community Recreation and Events Department, and the Cheyenne Capitals Youth Hockey Association for use of the Cheyenne Ice and Events Center (Revenue to the city) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Community Recreation and Events Department, and the Cheyenne Capitals Youth Hockey Association to authorize the purchase of advertising space inside the arena of the Cheyenne Ice and Events Center as identified (Revenue to the city) – referred to Finance Committee.

Contract Modification #1 to Contract #6445 between the City of Cheyenne and AVI Professional Corporation, Cheyenne, for additional necessary design and construction management services for the 17th Street Lighting Project (Specific Purpose Option Sales Tax). Reporting for Finance Committee, Mr. Johnson advised there was no recommendation from the committee. Mr. Johnson moved to approve, seconded by Mr. Segrave. Comment was made that the modification includes review and maintenance of existing lights and the lights between Capitol and Central are on all day and night. Upon inquiry, Mayor Collins explained the affiliated MOU has expired and will be reviewed and the lights that are on during the day will be addressed. Appreciation was expressed to Sam Berta, Construction Engineer, for his presentation of the modification at the Finance Committee meeting. Motion carried. Voting “yes” - all members of the governing body. (#6445)

No comments were made on the Voucher Report as presented.

Appointment of Robert Chamberlin and Robert Mathia to the Planning Commission. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the emergency replacement of the damaged lighting controls and a damaged light pole at Christensen Road and Pershing Boulevard. The emergency repairs have been authorized to Modern Electric for \$35,140.00. Mayor Collins explained a car crashed into the lights and signal control on the Christensen Road overpass causing a safety issue that needed immediate repair.

Under other business:

Mr. Johnson provided information on the Rooted in Cheyenne organization and advised they are looking for an additional 40 volunteers for an upcoming tree planting event to be held on September 18, 2021.

Mr. Johnson noted that due to the city’s recent naming policy changes, he began research to determine if there are any Cheyenne parks named after women, of which there are none. He requested this be considered if there are any acquired parks that need named.

Dr. Aldrich recognized the attendance of Lynn Huylar, Director of Safe Harbor and Erin LeBlanc, Director of Senior Services, and expressed appreciation for their services.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:40 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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